

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE OF PAGES 1 21	
2. AMENDMENT/MODIFICATION NO. 0002		3. EFFECTIVE DATE 26-Jun-2025		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO.(If applicable)	
6. ISSUED BY CODE CONTRACTING DIVISION US ARMY CORPS OF ENGINEERS 1500 ROCK ISLAND D ROCK ISLAND IL 61201		7. ADMINISTERED BY (If other than item 6) CODE		See Item 6			
W912EK							
8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)				X 9A. AMENDMENT OF SOLICITATION NO. W912EK25R0007			
				X 9B. DATED (SEE ITEM 11) 16-May-2025			
				10A. MOD. OF CONTRACT/ORDER NO.			
				10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offer ☐ is extended, ☒ is not extended. Offer must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended by one of the following methods: (a) By completing Items 8 and 15, and returning <u>1</u> copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.							
B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(B).							
C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:							
D. OTHER (Specify type of modification and authority)							
E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.) Illinois River Basin, Brandon Road L&D, Joliet, Illinois, Brandon Road Interbasin Project, Increment 1-A The purpose of this amendment is to: 1. Add Project Labor Agreement (PLA) requirement. 2. Add clauses FAR 52.222-33 and 52.222-34. 3. Update Attachment A, Past Performance Questionnaire. 4. Include Geotech Reference documents as Attachments F, G, and H. All other terms and conditions remain unchanged.							
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				TEL: _____ EMAIL: _____			
15B. CONTRACTOR/OFFEROR _____ (Signature of person authorized to sign)		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA BY _____ (Signature of Contracting Officer)		16C. DATE SIGNED 26-Jun-2025	

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

SECTION 00100 - BIDDING SCHEDULE/INSTRUCTIONS TO BIDDERS

The following have been modified:

INSTRUCTIONS TO PROPOSERS

SECTION L – INSTRUCTIONS, CONDITIONS AND NOTICE TO OFFERORS**A. PROPOSAL SUBMISSION****1. PROPOSAL SUBMISSION REQUIREMENTS**

a. **ALL PROPOSALS SHALL BE SUBMITTED ELECTRONICALLY THROUGH THE Procurement Integrated Enterprise Environment (PIEE) WEBSITE, <https://piee.eb.mil>. Any other submission means will not be considered.** Any portion of the proposal that is changed (as a result of negotiations or proposal revisions) should be annotated and dated. Submission shall be in searchable Adobe PDF format and legible. You are limited to five (5) maximum files per upload (total size cannot exceed 2 GB). If you have a large number of files, it is recommended that you combine or ZIP your files before uploading to the PIEE site. Offerors may use compression utility software such as WinZip or PKZip to reduce file size and facilitate transmission.

FILE DESCRIPTION: Include a “File Description” for each file you upload. NOTE: Do NOT enter Privacy Act Data (Personal Identification Information (PII)) in the File Description.)

For instructions on how to post an offer, please refer to the Posting Offer demo: https://pieetraining.eb.mil/wbt/sol/Posting_Offer.pdf.

b. **RECEIPT OF SUBMISSIONS.** All proposals shall be submitted no later than the date and time specified in Block 13 of the SF 1442. Offerors' proposals received after the required time and date deadline will not be evaluated. For the purposes of establishing whether a proposal submission is considered timely, the Government considers the date and time stamp of the file upload within PIEE as the official received date and time. Offerors should not assume that they will have an opportunity to clarify or correct anything in their proposals after submitting it in response to the original solicitation, so any submissions should be submitted on the best terms possible and free of errors.

c. Each paragraph should be single spaced and shall be separated by at least one blank line. Arial or New Times Roman font style, with 12-point minimum font size is required. Tables and illustrations may use a reduced font size, but no less than

8-point font size. Tables and illustrations may be produced in landscape mode.

d. The following volumes of material shall be submitted:

Table 1 – Page Submission Requirements			
Volume	Factor Number	Title	Maximum Pages
Volume I	Factor 1	Technical Approach	50
	Factor 2	Past Performance	25
Volume II	Factor 3	Small Business	25
Volume III	Factor 4	Price	No page limit
Volume IV	-	Solicitation, Offer and Award Documents, Certifications / Representations, and Teaming Arrangements (Agreements and/or Letters of Commitment, etc.) Small Business Subcontracting Plan – Other than small business only	No page limit
Volume V	-	Project Labor Agreement Submission	No page limit

NOTE: Proposal volumes that exceed the maximum page limitations will only be partially evaluated. All pages past the maximum page limit as the pages appear in the proposal will not be evaluated. The proposal cover sheet, PPQs/CPARS and Joint Venture Agreements/Teaming Arrangements/Subcontractor Consents will not count towards the maximum page limitation.

2. PROPOSAL FILES

a. Format. The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date, and Solicitation number in the header and/or footer. Each volume must have a Table of Contents and a coversheet to include the Offeror's Name, CAGE Code, Unique Entity ID (UEI), Address, NAICS, and business size in accordance with the System for Award Management (SAM) and Point of Contact Information that includes email and phone number. Files shall use the following page setup parameters:

Margins – Top, Bottom, Left, Right – 1"
 Gutter – 0"
 From Edge – Header, Footer 0.5"
 Page Size, Width – 8.5"
 Page Size, Height – 11"

If Offeror is utilizing a two (2) column format for text, a gutter of up to .25" may be utilized. For organizational charts and project schedules, the page size, width may be 11" and the page size, height may be 17".

b. Content Requirement. The Offeror shall limit submissions to essential matters, sufficient to define the proposal in a concise manner, to permit a complete and accurate evaluation of the Offeror's proposal. Proprietary information shall be clearly marked.

(i) **VOLUME I – Technical Approach and Past Performance.** The volume shall be organized into the following sections:

a. FACTOR 1: Technical Approach. Provide a technical approach not to exceed the page count listed in Table 1, for the project that describes the firm's Management structure, work plan and schedule.

Major Subcontractors are defined as subcontractors who are expected perform 10% or more of the total proposed contract value.

This factor shall be organized into the following sections and shall at a minimum include each item below:

(i) Section 1 – Management Structure:

- (1) Provide a clear and concise organization chart that shows key onsite and offsite personnel with titles and lines of authority. The organization chart shall list key personnel (including on-site and management personnel and major subcontractors). The organization chart shall be clear and concise to allow thorough understanding of the Contractor's team for the project. Clearly label the names and titles of all personnel and subcontractors on the organization chart, as well as clear lines of authority for personnel and subcontractors. Ensure that the Site Superintendent, Site Safety and Health Officer and Quality Control System Manager are different individuals.
- (2) Provide resume for key personnel, to include at a minimum: Project Manager, the Quality Control Manager, the Site Safety and Health Officer, the Site Superintendent, and Lead Commissioning Specialist. For each resume, provide descriptions and roles from past project experience similar in size and complexity to the requirements of this RFP. Each resume shall not exceed 3 pages.
- (3) Describe the scope of work and percentage to be performed by the offeror and each major subcontractor. The Offeror must self-perform at least 15% of the total contract work.

(ii) Section 2 – Work Plan and Schedule:

- (1) Provide a detailed Work Plan that demonstrates that the Offeror understands the requirements of the project and their plan to execute the project. At a minimum the work plan should include:
 - a. Strategies to phase and complete work adjacent to and within navigation channel to ensure minimal navigation disruption.
 - b. Methods, sequence, and flow of work and materials to: construct deterrent trenches, channel bottom slab, and wall monoliths; install underwater deterrent components- including steel pipes for bubble system, conduit and wiring, and acoustic transducers, including how the tolerances specified in the solicitation/contract documents will be met.
 - c. Process of commissioning system.
 - d. Methods and sequence of marine excavations including equipment to be used, risks associated with methods, segregation of material, if any, processing of rock, handling, storage and use of excavated materials.
- (2) Provide a detailed Schedule and narrative that demonstrates execution of major work activities/milestones within the required construction duration. The schedule should include:
 - a. Defined critical paths, detailed construction activities and durations, and critical milestones.
 - b. Explain how work will be phased in between navigation closure periods or during navigation width restriction periods and define the critical milestones to be completed during each.
 - c. Describe opportunities to minimize disruption to navigation and/or accelerate the construction completion schedule.
 - d. Describe the approach to schedule construction activities to execute a project of this size within the required period of performance. The Offeror shall clearly articulate any assumptions made in its plan to sequence and manage key activities and any constraints.
 - e. The Offeror shall identify any schedule risks and mitigation measures that will be employed to minimize risk impact.
 - f. Identification of critical long-lead time materials and fabrications.
 - g. Shop drawing preparation and material approval.
 - h. Consideration of time requirements for quality control, testing, and commissioning activities.
 - i. Installation, connection, and operation of utility conduits.

Assume a Notice to Proceed (NTP) of 10 November 2025 for proposal evaluation purposes only. The date is an estimated date for evaluation purposes and may not necessarily represent the actual NTP date for the awarded contract.

b. FACTOR 2: Past Performance. Factor shall contain past performance information regarding similar contracts. This factor shall not exceed the page count listed in Table 1, excluding Past Performance Questionnaire, Contractor Performance Assessment Reporting System (CPARS), and any documentation

supporting teaming arrangements (i.e, subcontracting commitments, etc.). All narratives must contain sufficient detail to demonstrate recency and relevancy.

c. An Offeror that relies upon the experience or performance history of a subcontractor, affiliate, or entity other than the Offeror must provide a fully executed joint venture agreement, teaming agreement, or commitment (in the case of affiliates). Submit all UEI and CAGE code(s) for all entities, whose experience is included in this Factor. Joint venture agreement(s), teaming agreement(s), and/or letters of commitment shall be submitted under Volume IV of the Offeror's proposal.

In the case of affiliates, the commitment, a description of each entity's relationship, and the affiliate's meaningful participation must be described in a document signed by the authorized representatives of both the Offeror and its affiliate.

(1) **Project Experience:** Offeror shall submit information on up to five (5) projects demonstrating the offeror's recent and relevant experience. Only the first five (5) projects submitted will be considered, any projects submitted after that will not be considered or evaluated. Projects submitted shall be completed or currently in progress with at least 50% construction completed, within the past 10 years as of the date this RFP was issued.

Each project submitted shall include the following information:

- Project Title
- Location
- Contract Number/Task Order Number, if applicable
- Contract Type (specific type such as Fixed-Price (FP), Cost Reimbursement (CR), Time & Materials (T&M), etc.).
- For Government projects, the agency issuing the task order or contract.
- Role of Offeror: Indicate type and percentage of work performed by the Offeror or Offeror's team member.
- Final Dollar Amount
- Project Start and Completion Dates: If an Offeror presents a project that is underway (more than 50% complete), the proposal must include an explanation of why that project should be considered recent as defined below.
- Brief Description of Project: Offerors shall provide a specific narrative explanation of each project submitted, describing the objectives achieved and detailing how the effort is relevant to the requirement of this RFP. For any projects that experienced schedule and/or cost growth or did not meet technical performance requirements, provide a brief explanation of the reason(s) for the shortcomings and any corrective action(s) taken.
- A copy of the official CPARS evaluation. For projects that do not have a CPARS evaluation, a Past Performance Questionnaire

(PPQ) is to be completed and submitted. The PPQ form is provided as Attachment A.

- Customer Primary Point of Contact: Name, relationship to project, agency/firm, phone number, and e-mail address. The Government may contact and interview project references. Reference information will not be revealed to other parties.
- Procuring Activity Point of Contact: Name, relationship to project, agency/firm, phone number, and e-mail address. The Government may contact and interview project references. Reference information will not be revealed to other parties.
- The extent to which the past performance demonstrates the offeror's experience performing tasks similar to those outlined in the PWS to include construction in the wet on a navigation channel, marine construction from a floating plant, diving, placement of underwater concrete, and construction of vertical concrete.
- The offerors should address delivery schedule revisions and provide an explanation of why the revision was necessary.

(2) Past Performance Questionnaire. For all projects submitted under Factor 2, a Past Performance Questionnaire or final CPARS must be completed and submitted (i.e., if a CPARS is not available, a Past Performance Questionnaire shall be submitted). The offeror shall complete Part I of the Past Performance Questionnaire and e-mail the questionnaire to both the Government contracting activity and technical representative responsible for the past/current contract. The POCs shall be instructed to electronically complete Part II of the questionnaire and e-mail the entire questionnaire to the Contracting Office, samantha.k.johanson@usace.army.mil and brunson.e.grothus@usace.army.mil, no later than the proposal due date. The offeror shall e-mail to the Contracting Office a list of all the POCs who were sent a questionnaire. The Government must receive this list no later than the proposal due date. The POC List shall be submitted in Word for Windows Table Format to include the following fields: Solicitation Number; Company Name; Contract Number; Government Agency; POC Last Name, First Name; POC Title; POC Telephone Number; POC E-mail Address; and Date E-Mail to POC.

(3) Submissions. **It is the responsibility of the Offeror to identify, detail, and demonstrate the relevancy of the submitted projects to the solicitation criteria elements. The evaluation boards will not make assumptions.** If the portfolio of the projects doesn't address the above minimum requirements, the proposal will still be evaluated. In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance. A summary chart that shows which relevant features have been met for each project will not be sufficient for demonstration of relevancy. Project descriptions that do not clearly describe Offeror's or team member's limit of experience, scope of the project, or periods of project performance will not be considered.

(ii) VOLUME II – FACTOR 3 – Small Business Participation. Applies to both Other than Small Business and Small Businesses. Offerors shall use Attachment B (Small Business Participation Plan) to demonstrate their proposed approach to meeting small business goals and objectives and stay within the page limits listed in Table 1 – Page Submission Requirements.

Offerors shall address their planned small business usage for this requirement. Offerors will be evaluated on the level of proposed small business participation in the performance of this acquisition relative to the goals, objectives, and requirements established herein.

Other than small business contractors may achieve small business participation through subcontracting to small businesses. Small business contractors may achieve small business participation through their own performance / participation as a prime and through a joint venture, teaming arrangement, and subcontracting to other small businesses. A small business prime Offeror's own participation as a prime counts towards the percentages set forth in this evaluation factor. Small businesses are not required to subcontract to other small businesses to achieve small business participation.

This factor is organized into the following sections via the Small Business Participation Plan.

- Section 1 - Division of Work; Small Business Goals and Corresponding Dollars.
- Section 2 - Enforceable Commitments to Small Businesses.
- Section 3 - Past Performance in Complying with FAR Clause 52.219-8 (Utilization of Small Business Concerns) (SMALL BUSINESSES ONLY).
- Section 4 - Past Performance in Complying with FAR Clause 52.219-9 (Small Business Subcontracting Plan) (OTHER THAN SMALL BUSINESSES ONLY).

All supporting documentation for the Small Business Participation Plan shall be included within the plan.

Supporting documentation shall not be included within or after the Small Business Subcontracting Plan, which is a separate file. Supporting documentation not within the Small Business Participation Plan will not be considered.

Additional Important Note for Other than Small Businesses ONLY

Separate from the Small Business Participation Plan, Other than Small Business Offerors shall also submit a Small Business Subcontracting Plan, as a separate file, within Volume III in accordance with FAR 52.219-9 ALT II. Goals shall be expressed in terms of percentage of total contract dollars, in addition to the goals expressed in terms of dollars subcontracted and as a percentage of total subcontract dollars.

The Small Business Subcontracting Plan shall be commensurate and consistent with the commitments offered within the Small Business Participation Plan. This is ensured in two ways:

a. The total dollars planned to be subcontracted to each small business category (i.e., SB, SDB, WOSB, HUBZone, VOSB, and SDVOSB) shall be equal to or greater than the total proposed dollars for those same categories within the Small Business Participation Plan.

NOTE: This may result in lower percentage goals within the Small Business Subcontracting Plan as compared to the Small Business Participation Plan. That is because the former is calculated based on the total dollars to be subcontracted whereas the latter is calculated based on the Offeror's proposed total acquisition value (TAV).

b. All small businesses with enforceable commitments shall also be identified within the Offeror's Subcontracting Plan (refer to Section B of the Small Business Participation Plan). This is pursuant to FAR Clause 52.219-9 ALT II and DFARS 215.304(c)(i)(C) to facilitate compliance with DFARS Clause 252.219-7003.

Although submission of a Subcontracting Plan is required, only apparently successful Offeror(s)' plans will be reviewed prior to award. Failure to submit a Subcontracting Plan may result in the offeror being found ineligible for award. If awarded a contract, the Offeror's Subcontracting Plan will be made a material part of it.

(iii) **VOLUME III – FACTOR 4 – PRICE.** The Offeror shall submit a completed schedule of prices as part of this factor. The Offeror shall not include or provide pricing in any other part of the proposal. In accordance with Federal Acquisition Regulation (FAR) 15.402 and 15.403-1, certified cost or pricing data are not required because adequate competition is expected for this procurement, however, the Government reserves the right to request such data prior to award. Information other than certified cost or pricing data is required to the extent necessary to determine fair and reasonable price. The Government does not intend to conduct any cost or price realism analysis. There are no page limitations for this volume. Proposal information included in this volume which is not directly related to price will be disregarded.

**(iv) VOLUME IV – SOLICITATIONS, OFFER AND AWARD
DOCUMENTS, CERTIFICATIONS/REPRESENTATIONS, TEAMING
ARRANGEMENTS (AGREEMENTS AND/OR LETTERS OF COMMITMENT, ETC.)
SMALL BUSINESS SUBCONTRACTING PLAN – OTHER THAN SMALL BUSINESS
ONLY**

a. **Tab A – Representations and Certifications** – Each offeror shall complete (fill-in and sign) the solicitation sections indicated below. An authorized official of the firm shall sign the SF 1442 and all certifications requiring original signature. An Acrobat PDF file shall be created to capture the signatures for submission.

- Section A – SF 1442, Solicitation, Offer and Award
- Section K – Representations, Certification and Other Statements of Offerors
- Bid Bond

b. **Tab B – Joint Venture and Mentor-Protégé Agreements** – If more than one contractor is listed in Block 14, or the Offeror listed in Block 14 is a joint venture (JV), then a signed JV agreement must be submitted with the proposal and the Offeror shall be registered in the System for Award Management (SAM) as a legal entity separate from the individual joint venture members. However, each member of the JV must submit its own UEI with the proposal.

Small business Offerors (e.g., 8(a), HUBZone, SDVOSBC, etc.) submitting a proposal as a Joint Venture or Mentor- Protégé Joint Venture shall submit evidence from the Offeror's SBA Servicing Agency that the Offeror has notified and discussed the proposed joint venture for this specific project with the appropriate SBA Representative or Business Opportunity Specialist.

JOINT VENTURE AGREEMENTS, APPROVED MENTOR-PROTÉGÉ AGREEMENTS, TEAMING AGREEMENTS, and/or LETTERS OF COMMITMENT SHALL BE SUBMITTED WITH THE PROPOSAL UNDER VOLUME IV.

(V) VOLUME V – PROJECT LABOR AGREEMENT(S). In accordance with FAR 52.222-33, Notice of Requirement for Project Labor Agreement, the Offeror shall submit a completed and signed Project Labor Agreement (PLA).

Any PLA submitted with the offer must comply with the requirements for the FAR Provision 52.222-33 and FAR 22.504. PLA is defined as a pre-hire collective bargaining agreement with one or more labor organizations that establishes the terms and conditions of employment for a specific construction project and is an agreement described in 29 U.S.C. 158(f).

EVALUATION FACTORS FOR AWARD

Section M – Evaluation Factors for Award

A. BASIS FOR AWARD

Award will be made to the Offeror whose proposal is determined the most beneficial to the Government based on the best value tradeoff process, permitting the Government to tradeoff among price and non-price factors and allowing the Government to award to other than the lowest priced proposal.

Technical Approach (Factor 1) and Past Performance (Factor 2) are of approximately equal importance. Small Business Participation (Factor 3) is the least important non-price factor. **ALL NON-PRICED FACTORS, WHEN COMBINED, ARE APPROXIMATELY EQUAL TO PRICE (Factor 4).**

To receive consideration for award, a rating of no less than “Acceptable” must be achieved for Factor 1 – Technical Approach and Factor 3 - Small Business Participation, and a confidence assessment other than “No Confidence” must be achieved in Factor 2 - Past Performance.

In accordance with FAR 22.503, a project labor agreement will be required for this large-scale construction project. To be eligible for award, an offeror must submit a project labor agreement in compliance with FAR 52.222-33.

Other than small business offerors must also have an acceptable Small Business Subcontracting Plan to receive an award in accordance with FAR 19.702(a).

B. EVALUATION APPROACH

1. **FACTOR 1: Technical Approach.** This factor evaluates the strengths, weaknesses, and deficiencies in the Offeror's proposed management structure, work plan and schedule for executing the work in the requirements listed in the Proposal Submission Requirements for Factor 1, Technical Approach, and the plans and technical specifications of the RFP. Missing required portions of the organizational chart, work plan, or schedule could indicate a lack of understanding concerning project requirements and may result in the entire proposal receiving an unfavorable rating and/or being eliminated from competition.

(i) Section 1 – Management Structure: The Government will evaluate the Offeror's proposed management structure to demonstrate competency and capacity to perform the contract work by evaluating the provided credentials, structure, and composition of their proposed team, as follows:

(1) The Government will evaluate the experience and adequacy of proposed personnel (including both the prime contractor and major subcontractors) to perform their assigned roles for the requirements of this RFP. The personnel assigned in the proposal must be utilized on the project. Substitution of any proposed personnel will require prior approval of the Contracting Officer after contract award.

(2) Description of Scope of Work and percentage to be performed by offeror and each major subcontractor. The scope of work will be evaluated to determine if the offeror understands all the requirements of the project, in particular the more unique features including minimizing navigation impacts, underwater excavations, processing and use of excavated bedrock, marine and land-based construction activities, underwater concrete placement, and limited land areas for both staging and construction. The distribution of work will be evaluated to determine if the Offeror has accounted for the entire scope of work to be completed by themselves as well as their subcontractors and will be self-performing at least 15% of the contract work.

(ii) Section 2 – Work Plan and Schedule: The Government will evaluate the Offeror's proposed work plan that describes the overall plan of operations to complete the contract work for the entire length of the contract.

(1) Items of particular concern to the Government are:

- a. The navigation closure work sequencing and reasoning for activities performed in this time frame;
- b. Allowance for completion of the required work within allotted performance period;
- c. Shop drawing preparation and material approval, procurement and delivery of materials;
- d. Identification of critical long lead time materials;
- e. Utilization of labor, equipment and plant;
- f. Staging, fleeting, parking, and mobilization plan;
- g. Coordination of major subcontractors, change management practices and overall job site management.

(2) The Government will evaluate the Offeror's schedule and narrative to include the following components:

- a. Critical paths, detailed construction activities and durations, and critical milestones are shown.
- b. Work to be phased between navigation closure periods, width restrictions, and critical milestones are logical and reasonable.
- c. Approach to schedule construction activities within required performance period. Assumptions made to sequence and manage key activities and constraints is clearly articulated.
- d. Identify any schedule risks and mitigation measures employed to minimize risk impact.
- e. Identification of critical long-lead time materials and fabrications.
- f. Shop drawing preparation and material approval.
- g. Consideration of time requirements for quality control and testing activities.
- h. Consideration of time requirements for each commissioning activity.
- i. Installation, connection, and operation of utility conduits.

In evaluating the Offeror's proposal, the Government will document aspects of the proposal, meeting the definition of significant strength, strength, weakness, significant weakness, and deficiency. The following definitions will be used in making the determination:

- Significant Strength. An aspect of an offeror's proposal that has appreciable merit or appreciably exceeds specified performance or capability requirements in a way that will be appreciably advantageous to the Government during contract performance.

- **Strength.** An aspect of an offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.
- **Weakness.** A flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.
- **Significant Weakness.** A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.
- **Deficiency.** A material failure of a proposal to meet a government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.
- **Uncertainty.** Any aspect of a non-cost/price factor proposal for which the intent of the offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission or mistake).

Following the identification of strengths, weaknesses, and deficiencies in the proposal, an adjectival rating will be assigned for this factor. A description of the adjectival ratings is included in Table 5.

TABLE 5 – COMBINED TECHNICAL/RISK RATINGS		
Color	Rating	Description
Blue	Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation, and thus, contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is not awardable.

The risk descriptions used to evaluate the combined technical/risk rating are shown in Table 6.

TABLE 6 - Technical Risk Ratings	
Adjectival Rating	Description
Low	Proposal may contain weakness(es) which have little potential to cause disruption of schedule, increased cost or degradation of performance. Normal contractor efforts and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may potentially cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to cause significant disruption of schedule, increased cost or degradation of performance. Is unlikely to overcome any difficulties, even with special contractor emphasis and close Government monitoring.
Unacceptable	Proposal contains a material failure or a combination of significant weaknesses that increases the risk of unsuccessful performance to an unacceptable level.

2. **FACTOR 2: Past Performance.** The Government will evaluate the Offeror's record of performance to ascertain the probability of successfully performing the required efforts of the RFP. Projects submitted where the Offeror performed as a Prime may be evaluated more favorably. Offeror's that submit more projects (up to a maximum of five (5) demonstrating the offeror's recent and relevant experience may be evaluated more favorably.

a. The past performance factor considers each offeror's demonstrated recent and relevant record of performance that meets the contract requirements. There are three (3) aspects to the past performance evaluation: recency, relevancy, and quality.

(i) **RECENCY:** The Government will first determine whether the submitted project is recent. Recent means a project completed or currently in progress with at least 50% construction completed, within the past 10 years as of the date this RFP was issued. Submitted projects that are not recent will not be further evaluated.

(ii) **RELEVANCY:** Next, the Government will determine how relevant a recent effort accomplished by the offeror is to the effort acquired through this source selection. In assessing relevancy, the Government will consider the similarity of construction, complexity, dollar value, contract type, and degree of subcontract/teaming.

Relevancy is not separately rated; however, a relevancy rating will be assigned for each project submitted by the Offeror.

Table 3 - Past Performance Relevancy Ratings

Rating	Definition
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

The overall project portfolio demonstrating multiple characteristics as listed under Factor 2 submission requirements will be given greater consideration for a higher confidence rating. Detailed narrative of actions Offerors did to ensure past successes in the listed criteria will be considered in the evaluation.

In addition to those items outlined for Factor 2 submission, projects demonstrating one (1) or more of the below performance characteristics will receive additional consideration for a higher confidence rating:

- Projects completed within the last six (6) years.
- Projects valued at \$75M or more.
- Working in a limited construction staging area.
- Excavation of bedrock. Projects that demonstrate commissioning of complex and/or interconnected systems including, but not limited to mechanical compressor and HVAC systems, lighting, fire alarm, stand-by power systems, tying to a PLC (programmable logic controls) and/or HMI (human-machine interface) controls system. Projects that demonstrate installation of underwater electrical and/or mechanical systems.
- Projects that demonstrate self-performance in the criteria listed in Factor 2 submission criteria.
- Fully completed projects that demonstrate successful turnover, rather than partially completed projects.
- Projects performed by the offeror as a prime contractor. If submitted for a JV project performed must be by the same team.

(iii) QUALITY ASSESSMENT: Finally, the third aspect assesses the overall quality of the offeror's past performance. Documented results from Past Performance Questionnaires, interviews, CPARS, and other sources form the support and basis for this assessment.

The Government will evaluate the Offeror's past performance and experience using the sources available to it including, but not limited to, the example projects identified by the Offeror and submitted on the PPQs or CPARS, any additional information received from references, other CPARS and other sources of relevant

information. Offerors may be provided an opportunity to address any negative past performance information about which the Offeror has not previously had an opportunity to respond if such information is determined to impact the rating to be assessed.

At the conclusion of the assessment, based on the Offeror's overall record of recency, relevancy, and quality of performance, the Offeror will be assigned one of the ratings in the table 4 below.

TABLE 4 - Performance Confidence Assessments	
Rating	Definition
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

If no recent/relevant performance record is available or the Offeror's performance record and experience is so sparse that no meaningful confidence assessment rating can be reasonably assigned, this factor will be assigned a rating of "Neutral Confidence," however, the Source Selection Authority (SSA) may give more favor to a proposal with satisfactory or better past performance than to one with a neutral rating.

3. **FACTOR 3: Small Business Participation Plan (SBPP).** Submissions must demonstrate the minimum requirements in sufficient detail for the level of proposed participation of small businesses in the performance of this acquisition. Offerors shall provide narratives for any element for which they cannot meet the minimum requirements. Failure to provide narratives will be assumed that no valid explanations exist to meet minimum requirements. Small Business Participation Plans containing details above and beyond the minimum requirements may be given greater consideration. The Government will evaluate the following:

a. The extent of participation of small business prime offerors and small business subcontractors in terms of the percentage of the Offeror's TAV. Offerors' proposed goals will be evaluated in comparison to the Governments goals below.

Proposing goals in multiple small business categories, which exceed the Government's suggested goals, may be rated more favorably:

Table 7 - Small Business Participation Goals	
Small Business and Socioeconomic Categories	Government's Suggested Goaling
Small Business (SB) ¹	6.00%
Small Disadvantaged Business (SDB)	Best Effort %
Women-Owned Small Business (WOSB)	Best Effort %
Historically Underutilized Business Zone (HUBZone)	Best Effort %
Veteran-Owned Small Business (VOSB)	Best Effort %
Service-Disabled Veteran-Owned Small Business (SDVOSB) ²	Best Effort %
Historically Black Colleges and Universities / Minority Institutions (HBCU) / MI) ³	0.00%

Pursuant to Section 8(d) of the Small Business Act, a business is considered small for Government procurements if it does not exceed the size standard for the NAICS code that the prime contractor believes best describes the supplies / services being acquired. In other words, the size of the prime's suppliers is determined by the applicable NAICS code of their joint venture, teaming partner, or subcontract, which may or may not be the same NAICS code as the one for the prime contract with the Government.

SDVOSB goal shall not be more than VOSB. That is because SDVOSBs are also VOSBs; however, VOSBs are not necessarily SDVOSBs.

b. The extent of commitment to use small businesses as defined in FAR Part 19. Refer to Section 2 of the Small Business Participation Plan to understand what constitutes an enforceable commitment.

c. The past performance of Offerors in complying with the requirements of FAR Clause 52.219-8 (Utilization of Small Business Concerns). **This applies only to Small Business Offerors.** Proposing a combination of documentation showing past compliance with FAR Clause 52.219-8 may be rated more favorably.

d. The past performance of Offerors in complying with the requirements of FAR Clause 52.219-9 (Small Business Subcontracting Plan). **This applies only to Other than Small Business Offerors. Demonstrating past compliance with FAR Clause 52.219-9 also demonstrates past compliance with FAR Clause 52.219-8.** Proposing a combination of documentation showing past compliance with FAR Clause 52.219-8 may be rated more favorably.

In evaluating the Offeror's proposal, the Government will document aspects or flaws within it that meet the definitions of significant strength, strength, weakness, significant weakness, and deficiency. Using identified strengths, weaknesses, and deficiencies within the proposal, an adjectival rating will be assigned for this factor. Factor 3 will use the following adjectival ratings and associated descriptions:

Table 8 - Small Business Rating Method	
Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the small business objectives.
Good	Proposal indicates a thorough approach and understanding of the small business objectives.
Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the small business objectives.
Unacceptable	Proposal does not meet small business objectives.

4. **FACTOR 4: Price.** No adjectival ratings will be used in the evaluation of price proposals. The Government shall perform a price analysis of the proposal, using FAR Part 15.404-1 (b), price analysis techniques. Proposals will be evaluated for the following:

a. **Completeness:** The price proposal will be evaluated to ensure that all requirements of submission instructions are met.

b. **UNBALANCED PRICING:** The Offeror's overall Price proposal will be evaluated for unbalanced pricing as defined in FAR 15.404-1(g). An offer may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government (see FAR 15.404-1(g)(1) through FAR 15.404-1(g)(3)). Firms are cautioned to distribute direct costs, such as material, labor, equipment, subcontracts, etc. and to evenly distribute indirect costs, such as job overhead, home office overhead, bond, etc., to the appropriate contract line items. Both parties shall presume that field overhead costs through the proposed contract duration are inclusive in the offered price for the contract.

c. **Fair and Reasonable Pricing:** The Offeror's overall price proposal will be evaluated using one or more of the techniques described in FAR 15.404-1(b).

d. **TOTAL EVALUATED PRICE:** The Government will use the total proposed firm fixed price of all line items as proposed by Offerors to determine the total evaluated price and in accordance with FAR 52.217- 5. The schedule of prices submitted will form the basis of the total evaluated price and best value tradeoff determination. The prices are binding throughout the contract period.

5. **TEAMING ARRANGEMENTS.** Joint Venture Agreements and Mentor-Protégé agreements must comply with the relevant regulations in Title 13 of the Code of Federal Regulations. Failure to comply with these regulations could result in the offeror

being found ineligible for award.

6. PROJECT LABOR AGREEMENTS. Submitted PLAs will be reviewed for compliance with FAR 52.222-33 and all statutes, regulations, Executive Orders, and agency/contract requirements. At a minimum, as stated in FAR 52.222-33, the PLA must:

- a. Bind the Offeror and Subcontractors engaged in construction on the construction project to comply with the project labor agreement;
- b. Allow the Offeror and all Subcontractors to compete for contracts and subcontracts without regard to whether they are otherwise parties to collective bargaining agreements;
- c. Contain guarantees against strikes, lockouts, and similar job disruptions;
- d. Set forth effective, prompt, and mutually binding procedures for resolving labor disputes arising during the term of the project labor agreement;
- e. Provide other mechanisms for labor-management cooperation on matters of mutual interest and concern, including productivity, quality of work, safety, and health.

Award can only be made to an offeror with a PLA that is fully compliant with the contract requirements. Offerors not submitting a required PLA will not be eligible for award.

C. DISCUSSIONS

1. GENERAL INFORMATION. The Government reserves the right to award without discussions. Discussions with offerors (if necessary) after establishment of the competitive range are for the purpose of allowing offerors the opportunity to revise their proposals. Discussions will be tailored to each offeror's proposal and shall be conducted with each offeror in the competitive range IAW FAR Part 15.306(d) and (e).

2. DISCUSSION SCHEDULING. If oral discussions are conducted, the Contracting Officer will schedule the discussion sessions, and each offeror will be notified of the time and place at least three (3) business days prior to their discussion session. The Contracting Officer will provide additional instructions with the notification. The discussion sessions will take place at a facility of the Government's choosing in the Rock Island, IL area or via teleconference. It is the discretion of the Contracting Officer as to whether discussions will be orally conducted or by written means.

SECTION 00700 - CONTRACT CLAUSES

The following have been added by full text:

52.222-33 NOTICE OF REQUIREMENT FOR PROJECT LABOR AGREEMENT (JAN 2024)

(a) Definitions. As used in this provision, the following terms are defined in clause 52.222-34, Project Labor Agreement, of this solicitation "construction," "labor organization," "large-scale construction project," and "project labor agreement."

(b) Offerors shall--

(1) Negotiate or become a party to a project labor agreement with one or more labor organizations for the term of the resulting construction contract; and

(2) Require its subcontractors to become a party to the resulting project labor agreement.

(c) The project labor agreement reached pursuant to this provision shall--

(1) Bind the Offeror and subcontractors engaged in construction on the construction project to comply with the project labor agreement;

(2) Allow the Offeror and all subcontractors to compete for contracts and subcontracts without regard to whether they are otherwise parties to collective bargaining agreements;

(3) Contain guarantees against strikes, lockouts, and similar job disruptions;

(4) Set forth effective, prompt, and mutually binding procedures for resolving labor disputes arising during the term of the project labor agreement;

(5) Provide other mechanisms for labor-management cooperation on matters of mutual interest and concern, including productivity, quality of work, safety, and health; and

(6) Fully conform to all statutes, regulations, Executive orders, and agency requirements.

(d) Any project labor agreement reached pursuant to this provision does not change the terms of the resulting contract or provide for any price adjustment by the Government.

(e) The Offeror shall submit to the Contracting Officer a copy of the project labor agreement with its offer.

(End of Provision)

52.222-34 PROJECT LABOR AGREEMENT (JAN 2024)

(a) Definitions. As used in this clause--

Construction means construction, reconstruction, rehabilitation, modernization, alteration, conversion, extension, repair, or improvement of buildings, structures, highways, or other real property.

Labor organization means a labor organization as defined in 29 U.S.C. 152(5) of which building and construction employees are members.

Large-scale construction project means a Federal construction project within the United States for which the total estimated cost of the construction contract(s) to the Federal Government is \$35 million or more.

Project labor agreement means a pre-hire collective bargaining agreement with one or more labor organizations that establishes the terms and conditions of employment for a specific construction project and is an agreement described in 29 U.S.C. 158(f).

(b) The Contractor shall maintain in a current status throughout the life of the contract the project labor agreement entered into prior to the award of the contract.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts with subcontractors engaged in construction on the construction project.

(End of Clause)

SECTION 00800 - SPECIAL CONTRACT REQUIREMENTS

The following have been modified:

LIST OF ATTACHMENTS

LIST OF ATTACHMENTS:

A – PAST PERFORMANCE QUESTIONNAIRE

B – SMALL BUSINESS PARTICIPATION PLAN TEMPLATE

C – WAGE RATES

D – SPECIFICATIONS

E – PLAN SETS

F – GEOTECH REFERENCE PHASE I REPORT

G – GEOTECH REFERENCE PHASE II REPORT

H – GEOTECH REFERENCE PHASE III REPORT

(End of Summary of Changes)